

Lots Available:

Available as cash or terms. Terms are very flexible as we will be able to finance – up to 10 years at 5% interest. Seller reserves the right to sell / assign contracts to third parties. Minimum down payment of 10%

Monthly annual dues to be calculated and payable annually or monthly as agreed. Repair and maintenance of townsite well, water pipes and outlets, maintenance of roads, annual property tax, payment for Wayne County Water Commission Annual dues. Currently annual dues for 2021 \$170.00

CC&R's / community rules & Regulations:

Wild 'n Free Community at Blue Valley, LLC is a RV access community but is a committed building lot development, not necessarily intended for year- occupancy but more of a seasonal gathering place for like-minded people enjoying extended camping, cabins, recreational abodes, a paradise/ gardening – a raw natural outdoor experience. All lots are however, legal building lots for traditional permanent year-round living if lot owner chooses

Our camping Community is promoted as a tranquil quiet, calm, relaxing get-a-way place from the hectic, hassling, tension filled world. This is a friendly place that allows for community living in conventional construction or recreational vehicle use even campers or tent camping in a natural, meditative and organic way.

Wild 'n Free Community at Blue Valley LLC, Community is a virgin, natural green gardening community. Gardens of all types are encouraged for beauty without the use of any chemicals to maintain and create an organic natural vegetables, fruits and herbs that are healthy to eat. Our primary objective is to have a Farmers' Market where local produce grown edibles can be sold or exchanged with others and the passing Highway 24 public.

Restrictions:

No invasive plant types listed on official Wayne County or Utah State invasive species lists; varieties of herbs, berries, nuts, fruits, vegetable, etc. are encouraged. The use of chemicals, artificial fertilizers, pesticides, insecticides are forbidden. These virgin lands have never before been polluted and are protected from such.

The gateway property, on Highway 24, will have a farmers' market site for retail marketing to passing vacationers and travelers along the Golden Circle Parkway tying together Utah's MIGHTY FIVE NATIONAL PARKS. (Fees, percentages, times of staffing or volunteering, etc., all yet to be arranged by participants.

All homes, recreational vehicles, campers, storage containers, living units must have written detailed visual plot plans that are submitted for review and prior building approval before building, leaving or living in, or storing on any lot. All home plans, RV units must receive a visual and receipted acceptance inspection prior to entering onto the WFCBV Community of lots and blocks. Inspections are done at the exit property 7650 E Hwy 24, Caineville entrance. Current photos and detailed representation

architectural of quality may be mailed. Positioning of living units plot plan to have a minimum of 25 feet side yard all around building pad or architectural drawing/ blue prints.

Forbidden:

Any idea/ plan of setting a permanent mobile home for full / part time living. **RV’s must be fully operational and maintained road-worthy, being insured for liability and currently licensed.** NO exceptions permitted, NO Junkers, dwelling units are acceptable or permitted.

Offenders will be declared in default of Community CC&R rules. A 90-day demand notice will be mailed after which the developer will, with the accompaniment of a representative of the Wayne County Sheriffs’ Department, enter the property and remove declared objectionable units/ items to local Hanksville Landfill for junk disposal. No compensation or recourse is expended to defaulting parties. No other resolution options are agreed or extended.

Recreational vehicles (ATV’s) are allowed but only for direct ingress/ egress from surrounding public lands and to private owner’s lot where all are immediately parked. No noisy, dusty, loud repetitious use even on private lots. ***“Tranquility prevails!”*** noise and dust to be kept to a minimum. A terrific off-road ATV play area is provided locally on private lands. As well as an established OHV area on BLM lands, known as Swing Arm City, a terrific test of every skill level located just 2 miles further west on Hwy 24, Caineville Utah.

Hunting, discharge of guns, trapping, fireworks are not permitted anywhere on Wind ‘n Free at Blue Valley lands (500 acres). Nature’s creatures (deer, rabbits, beavers, porcupines, foxes, coyotes, cranes, turkeys, birds, rodents or all types are prior inhabitants and are respected and protected.

Wind ‘n Free Community at Blue Valley is a total area animal sanctuary, where nature’s critters are recognized as prior established and protected. NO harassment, hunting, trapping, poisoning, etc. allowed.

Our community is established as an off-grid development. Only natural solar, wind, stream, alternative energy power sources permitted. Personal home generators are permitted - the quiet type with reasonable hours of use. Grid power will not be supplied but is available at gateway parcel for the Farmers’ Market commercial outlet.

Black water tank dump outlet station is provided at the community/ public facility at the highway exit property. Composting and composting toilets are strongly encouraged for all lot owners. Sun-Mar Composting Toilets is a NBF certified supplier. Details can be obtained online or from the office.

Internet and television services will not be provided by Wild ‘n Free Community at Blue Valley, LLC. Owners may opt for satellite from TV suppliers for cable TV and internet as well, currently only Verizon is at 4g with limited access from AT&T and T-Mobile. Expansion and upgrades are ongoing. Verizon service is accessible across the community. Please check with your Internet and Television provider for availability.

Household water supply is provided to each owned lot property line – a 125-gal storage tank with a tap provided to each lot. Water is serviced from an artesian well, drilled to 770’ into the Morrison formation owned by HOA lot owners, which purchases water from Wayne County water Conservancy District annually. WCWCD will issue certificate of ownership once water is proven up on and exact amount of water is known. Gardening and residential supply of 125 gallons per day for home and gardening. This water will be furnished to your lot, gravity flow and not pressurized. It is recommended that drinking water be purchased or alternatively sourced due to the slight Sulphur taste in the natural ground water. However, distilling the well supplied water removes Sulphur/ salts, leaving no taste.

Townsite Well Capacity; 5hp submerged pump @ 35 G.P.M. = 50,400 gallons/ per days @ maximum supply.

Artesian Natural Flow 3 G.P.M. = 4,320 gallons per day.

HOA owned land of walking trails/ common use area comprising of 400 acres open to explore exclusively by lot owners. Closed to Public.

Currently 500 acres plus 2½ miles of hiking trail around the townsite and along the Fremont River are open and available to lot owner’s enjoyment.

Warning notice: periodically (but not annually) the Fremont River overflows the entrenched banks during the summer flooding season causing periods of inaccessibility due to thick, wet mud, accumulating on the road approach cement pad, crossing the river. When Mother Nature floods, all vehicle movement comes to a stop. A Footbridge/ ATV trail does assist in crossing the river but access is definitely hindered for vehicles for up to 10 days mud drying time before removal by Wayne County Road Department. There is a back way to Hanksville using the Wayne County Road.

The access roadway, exiting paved State Highway 24 @ milepost 106.6 is a class D dirt road and a Wayne County Road Department maintained right of way. River crossing is maintained and the crossing is cleared and opened after flooding closure, BUT time is required for the mud to dry out enough for the removal by heavy equipment.

All exterior night time lighting shall be muted and directed downwards for “**DARK NIGHTS**” to enable night viewing of stars, for which this area is supreme.

Wild ‘n Free Community at Blue Valley, LLC is an equal housing and RV Access opportunity.

Small gatherings, of under 20 people are allowed per lot. All guests, owners, renters are asked to respect their neighbors regarding noise, lights, music, engine noise and general loudness must be considered.

Building plans/ RV units acceptance into our Wild ‘n Free Community at Blue Valley, LLC is conditional on inspection by the developers of Wild ‘n Free Community at Blue Valley, LLC Kelly Taylor or Wendy Patrick (State licensing being kept current & eye appeal). All RV units must be in good condition and

operational at all times. No RVs' will be permitted to remain parked all year round. This is not a storage site, nor will Junker units be allowed or permitted. Home/ cabin plans for construction requires approval of community architectural committee before Wayne County building permit applications may be requested.

Garbage recycling is the standard with composting paramount. A Community Garbage drop off and Wayne County Landfill pickup container will be provided at the Highway exit Property.

Mail and parcel deliveries: boxes for UPS, FedEx, etc. deliveries are provided at Highway US 24 exit at Wild 'n Free Blue Valley office and visitor center. USPS no longer makes deliveries to rural addresses.

Historic Giles Town Site Cemetery (Green): Optional

Lot owners will be able to select, free of charge, a green cemetery plot in the adjacent expansion to the historic fenced area in Section 21. The Green Cemetery Plot is a 33'x33' plot accessed by a 20' common roadway. Lot owners may select their specific plot, with space for 4 (10'x10') burials. All burials MUST follow Green Cemetery burial guidelines WITH NO EXCEPTION. Green burial guidelines provided on request. The burial plots are not deeded but as a HOA provided certificate of occupation.

Speed Limits: the entire Blue Valley, the townsite, cemetery and surrounding land is subject to a 20 MPH limit. This is to reduce dust, noise and be safer for outdoor enthusiasts, pets and animals. Respect for neighbor's enjoyment of peace, tranquility and quite is expected of all.

Pets: Pets are very welcome however; many pets can be noisy and disruptive. Pets Owners to control animals and not allow them to be nuisances. No restrictions for indoor pets but outdoor animals are restricted to 2 dogs -75lbs or less. Before any other animals are introduced, such as chickens or pigs, permission must first be obtained from the majority votes of the HOA Committee. **Pet owners are responsible for all actions by their pets.**

HOA Committee: All lot owners are automatically members of the HOA Committee and all are entitled to ONE vote per lot on community issues.

ADDENDUM:

No commercial activities allowed such as vacation or short term rentals,